

TOWN OF WESTWOOD

Commonwealth of Massachusetts

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CONSERVATION COMMISSION

MEMORANDUM

TO: Westwood Conservation Commission

FROM: Alice P. Smith

SUBJECT: DEP 338-0303 – Review Lot 2B Mill Street
Plan: Proposed Site Plan of Land, Lot 2B Mill Street in Westwood, MA:
Dated: March 9, 2001

DATE: April 23, 2001

Executive Summary

Recommendations

The site is an interesting one from a regulatory perspective. There are several resource areas including Land Subject to Flooding, Riverfront area, 100 foot buffer to bordering vegetated wetlands, Restricted Wetlands, and 10 foot no disturb buffer. The proposal currently before the commission is for a single family residence on a small rise of land surrounded by wetlands. Access to the house is via a proposed driveway requiring a wetland crossing.

The plan and Notice of Intent filing lacks sufficient information for the Commission to be able to make a decision concerning the impacts related to this development. I have requested several modifications to the NOI and revisions to the plan submitted with the NOI. I recommend that the Commission vote to request that the applicant provide the information detailed in the Plan Review and that the public hearing be continued to a date which allows sufficient time for the applicant to make the revisions.

Plan Review

The plan does not show either the 100' buffer to BVW or the 10' no disturb buffer around any wetlands, streams, etc.

The driveway access requires a wetland crossing. No information is provided in the NOI filing to address the 10' no disturb issues.

The plan indicates that the proposed utilities are brought to the house via a right of way on the adjacent lot. The Notice of Intent does not indicate that work is proposed on another map and parcel. This may influence the abutter list and subsequently the proper notification of abutters for a public hearing.

The proposed utilities and work in the driveway require a stream crossing of Mill Brook. No detail is provided as to how the stream crossing is to be undertaken. No detail is provided concerning the work required to install the utilities, (i.e. trenching, bedding to be used, size and type of pipe, ground water elevations, plans for dewatering etc.)

Flood Control and Storm Damage Prevention: This site is extremely susceptible to flooding. The proposed house is on a very small island and the foundation takes up most of the square footage of the land above the 100 year floodplain. The basement may be below the annual high groundwater elevation. I have asked the engineer to provide a soil profile at the location of the proposed house.

This should give the Commission some indication of the annual high groundwater elevation

*Notification of Abutters
Not filed under*

Wetland Delineation

I conducted a review of the wetland flagging on April 10, 2001. The site was not flagged. The applicant's representative was notified immediately after my site visit and again on April 23, 2001. To date nothing has been done to address the flagging situation and the wetlands cannot be verified until the flags are in the field.

Restricted Wetlands

310 CMR 10.53(2) General Provisions: provides that "When the site of a proposed project is subject to a Restriction Order which has been duly recorded under the provisions of M.G.L. c. 131 §40A, such a project shall conform to both the provisions contained in that Order and 310 CMR 10.51 thru 10.60."

On April 24, 1974 the State recorded a Restriction Order on several wetlands in the Town of Westwood (See Book 5033, Page 256 at the Norfolk Registry of Deeds). The Order Under M.G.L. c. 131 § 40A regulates and restricts the inland wetlands for the purpose of preserving flood plain areas, water resources, wildlife, etc. Under the Restriction Order, few uses are permitted on land affected by the order. With respect to roadways to be constructed after 1974, the Order permits only

"the construction and maintenance of a driveway of minimum legal and practical width where alternative means of access from a public way to unrestricted land of the same owner is unavailable."

Little written information concerning the minimum legal and practical width of a private driveway is available. However, the Town Engineer has indicated that the minimum legal and practical width of a private driveway is 12 feet. Typically, driveways run 12 to 14 feet. This is distinct from the minimum width of 18 feet for a *fire lane* as described by Chief Scoble defined.

Lot 2B contains Restricted Wetland #44 on site. A copy of the Order is attached to this report. The plan does not reflect the location of the Restricted Wetland. The NOI page 5 of 8, question number 3 asks whether there are restricted wetlands on the site. The applicant has answered that no to this question. This needs to be changed to reflect the existence of restricted wetlands on the site. I have asked the engineer for a copy of the plan filed at the registry of deeds showing the restricted wetland. I have also asked the engineer to revise the plan and provide an overlay of the restricted wetland boundary on the wetlands as they are flagged in the field.

Riverfront Area

A large portion of the lot is in riverfront area. Riverfront area regulations, like regulations related to limited status projects, require the commission to investigate reasonable, equivalent alternatives that minimize impacts to the resource areas. The alternative of using the 20' wide driveway and utilities easement as the driveway access to the house presents a design that significantly reduces the impacts to *all* resource areas.

310 CMR 10.58(3) Riverfront Area: Presumption. states that where a proposed activity involves work within the riverfront area, the Commission *shall* presume that the riverfront area is significant to protect the interests under the Act. "This presumption is rebuttable and may be overcome by a clear showing that the riverfront area does not play a role in the protection of one or more of these interests."

This is the first thing that needs to be decided in reviewing projects within the riverfront area. Has the applicant proven that the riverfront area does not play a role in the protection of the interests stated M.G.L. c. 131, § 40 and 310 CMR 10.58(3)?

If the answer is yes, then the Commission is charged with writing an Order of Conditions in which the grounds for its determination are documented. If the answer is no, then the commission must proceed through the performance standards to find a substantially equivalent economic alternative to the proposed work that minimizes impacts to the resource areas.

310 CMR 10.58(4) Riverfront Area: General Performance Standard. Where the presumption is not overcome, the applicant is required to prove that "there are no practicable and substantially equivalent economic alternatives to the proposed project with less adverse effects on the interests identified in M.G.L. c. 131 §40 and that the work, including proposed mitigation, will have no significant adverse impact on the riverfront area to protect the interests identified in" the Act.

Westwood Wetland Protection Bylaw, Article 18, 10 Foot No Disturb Buffer

Members of the Commission are urged to re/read Article 18, Section 2, 3, (paragraph 3) and section 8k concerning the 10' no disturb zone as it applies to this filing. The Commission will need a vote to issue a decision on work in the buffer.

The applicant has not provided information showing how the work proposed in the 10 foot buffer will "materially benefit" the wetland as required by Article 18, section 8k. The applicant has yet to present information to overcome the presumption under Article 18, section 3, paragraph 3 that work within the no disturb zone will alter the wetland.

Comments

The Commission may wish to request that the applicant continue the public hearing until the requested information is provided and the plans are revised.



ROBERT C. HAAS
Chief of Police

TOWN OF WESTWOOD
COMMONWEALTH OF MASSACHUSETTS

POLICE DEPARTMENT
590 High Street
Westwood, MA 02090

TEL: (617) 326-1903
FAX: (617) 326-1086

MEMORANDUM

TO: Chief Robert C. Haas
FROM: Officer Paul R. Sicard
DATE: July 03, 1997
SUBJECT: House lot #20 - Mill Street

Sir:

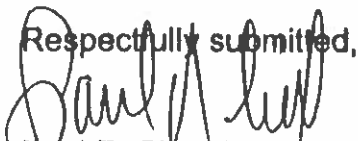
I was requested to look into a proposed shared driveway for house lot #20 on Mill Street. The proposed lot would share a driveway with #44 Mill Street.

Our main concern with shared driveways is that if not clearly marked they can cause confusion when looking for an address in an emergency. In order to be clearly visible both addresses should be clearly visible from both directions at the street. They should be clearly marked again at any split in the driveway. The individual houses should also be clearly marked.

The only other concern would be that the current driveway have adequate sight distance. This is something that the Town Engineer would have to look into.

If both of these situations were addressed, I do not see a problem with it.

Respectfully submitted,


Paul R. Sicard
Safety Officer

GLM ENGINEERING CONSULTANTS, INC.
WEST HOLLISTON PROFESSIONAL PARK

1750 WASHINGTON STREET, HOLLISTON, MASSACHUSETTS 01746 - (508)429-1100 - FAX (508)429-7160

REGISTERED CIVIL ENGINEERS AND LAND SURVEYORS

March 20,2001

Westwood Conservation Commission
Town Hall
Westwood, MA

Re: Notice of Intent, Lot 2B, Mill Street, Westwood, MA

Dear Commission Members,

On behalf of the applicant, Salvatore Vinci, we hereby grant your commission an extension of time to hold the public hearing for the above captioned project. It is our understanding that the hearing is scheduled for April 25,2001.

Thank you for your cooperation in this matter.

Yours truly,

Robert S. Truax
Project Manager/Design Eng.



COMMONWEALTH OF MASSACHUSETTS
EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS
DEPARTMENT OF ENVIRONMENTAL PROTECTION
Metropolitan Boston – Northeast Regional Office

ARGEO PAUL CELLUCCI
Governor

JANE SWIFT
Lieutenant Governor

BOB DURAND
Secretary

LAUREN LISS
Commissioner

DEP File # 338-0303

RE: NOTIFICATION OF WETLANDS PROTECTION ACT FILE NUMBER WESTWOOD

DATE: 03/28/01 2:11 PM

(city/town)

The Department of Environmental Protection has received a Notice of Intent filed in accordance with the Wetlands Protection Act (M.G.L. c. 131, §40):

Applicant: SALVATORE VINCI

Owner: same

Address: 65 BAY COLONY DRIVE
WESTWOOD MA, 02090-

Address:

LOCUS: LOT 2B, MILL STREET

IF CHECKED, THE FOLLOWING ITEM(S) APPLY TO THIS NOTICE OF INTENT:

A. () This project has been assigned the following file # : 338-0303

Although a file # is being issued, please note the following: Will the existing culvert in the location of the proposed driveway maintain the hydraulic connection between the wetlands on either side of the driveway post-construction? Is the driveway the minimum width acceptable to the planning board? Can the proposed house be relocated so that there is less impact to the Riverfront Area?

ISSUANCE OF A FILE NUMBER INDICATES ONLY COMPLETENESS OF SUBMITTAL, NOT APPROVAL OF APPLICATION

B. () No file # will be assigned to this project until the following missing information is sent to this office, to meet the minimum submittal requirements in accordance with the Wetlands Protection Regulations at 310 CMR 10.00:

1. () copy(s) of a completed Notice of Intent (Form 3 or Form 4 of Sect. 10.99, whichever is applicable) and a copy of the Fee Transmittal Form, with a copy of the check for the State's share of the Notice of Intent filing fee.
2. () copy(s) of plans, calculations, and other documentation necessary to completely describe the proposed work and mitigation measures to protect resource areas.
3. () copy(s) of an 8.5" X 11" section of the USGS map of the area.
4. () copy(s) of plans showing compliance with Title 5 of the State Environmental Code, 310 CMR 15.00.
5. () Proof that a copy of your Notice of Intent has been mailed or hand delivered to the Natural Heritage and Endangered Species Program.

COMMENTS:

(see page 2 for additional information)

This information is available in alternate format by calling our ADA Coordinator at (617) 574-6872.

.205a Lowell St. Wilmington, MA 01887 • Phone (978) 661-7600 • Fax (978) 661-7615 • TDD # (978) 661-7679

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C. ☐ **Other Regulatory Jurisdiction**

1. ☐ Application has been forwarded to Waterways Regulatory Program to determine if a Chapter 91 License is required.
2. ☒ Applicant is advised to forward a copy of the Notice of Intent to the Corps of Engineers for review (call 1-800-362-4367 for information).

D. ☐ **401 Water Quality Certification**

The project described in your Notice of Intent requires a 401 Water Quality Certification from the Department of Environmental Protection and may require submittal of a 401 application form. See below for further details:

1. ☒ **Based upon the information submitted in and with your Notice of Intent a separate 401 Water Quality Certification application form is not required.** The Department has reviewed the plans submitted by the applicant and finds that there is reasonable assurance that the project or activity will be conducted in a manner that will not violate the Massachusetts Surface Water Quality Standards, provided that:
 - a) the applicant receives and complies with a Final Order of Conditions from the local conservation commission or the Department;
 - b) The Order of Conditions does not cause the loss of more than 5,000sq.ft. of bordering vegetated wetlands and land under water and/or the dredging of more than 100 cubic yards of land under water;
 - c) any loss of vegetated wetlands has been mitigated with a minimum replication of 1:1; and is not part of a subdivision; does not cause the loss of any Wetlands designated as
 - d) The project is not exempt from the M.G.L. c. 131, §40-the Wetlands Protection Act; Outstanding Resource Waters; and does not cause the loss of any salt marsh.

Therefore, provided that the above conditions are satisfied, the Final Order of Conditions will serve as the Water Quality Certification for this project. This does not relieve the applicant of the duty to comply with any other statutes or regulations.

2. ☐ Before the activity described in the Notice of Intent can commence, you must obtain a Water Quality Certification form from this Regional Office. **Please complete the enclosed 401 Water Quality Certification application form and file it with this Regional Office for review.**

3. ☐ Your project involves dredging of greater than 100 cubic yards of material or requires a permit from the Federal Energy Regulatory Commission for work in "waters of the Commonwealth." Therefore, your proposed project is subject to 314 CMR 9.00 and requires a Water Quality Certification. **Please complete the enclosed 401 Water Quality Certification application form and file it with the Department of Environmental Protection, Waterways Program, and One Winter Street, Boston, MA 02108.** Contact the Division of Waterways program at 617-292-5655 if you have and questions.

For more information please contact: Mr. DERICK STANDISH at 978- 661-7600.

Cc: X Conservation Commission

☐ Owner:

☐ DEP- Water Pollution Control

☐ Other:

☐ U.S. Army Corps of Engineers

☐ Coastal Zone Management

☒ Representative:

GLM Engineering Consultants

1750 Washington Street

Holliston MA 01746

THOMAS P. MCCUSKER, JR.
ATTORNEY AT LAW

Town Counsel
Town of Westwood
P.O. Box 401
Westwood, Massachusetts 02090
(617) 326-3500

Please Reply to
55 Summer Street
Boston, Massachusetts 02110
Telephone (617) 482-1600
Fax No. (617) 482-9237

June 5, 1997

Mr. Peter Levenson
Building Commissioner
Town of Westwood
Town Hall
Westwood, MA 02090

RECEIVED
TOWN OF WESTWOOD

JUN 10 1997

RE: Lot 2B, Mill Street:

BUILDING COMMISSIONER

Dear Peter:

I have reviewed the materials that you have provided me relative to the above referenced matter. It would appear that the Planning Board approved the plan on April 29, 1969 and by waiver reduced the street requirements to a twenty foot right of way with a twelve foot wide gravel roadway, suitably drained and adequate for passage of emergency vehicles.. It is my opinion that the Planning Board intended to waive the cul-de-sac requirement as long as the way is suitable for the passage of emergency vehicles.

It is my opinion that Lot 2B is an approved lot and is entitled to a building permit conditioned upon the appropriate public safety official confirming that the way is suitable for the passage of emergency vehicles.

Should you have any questions, please call.

Yours truly,



Thomas P. McCusker, Jr.
Westwood Town Counsel

TPM:t
7192T